

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRIAN RISLEY-O'ROURKE,

Petitioner

VS.

KOURTNEY WILLIAMS,

Respondent

) Case Number: FDI-20-793149

) Hearing Date: July 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ISSUE, EVIDENCE, AND MONETARY SANCTIONS AND
IMMEDIATE PAYMENT OF PREVIOUSLY ORDERED ATTORNEY FEES SANCTIONS

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 11AM on 7/28/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Brian Risley-O'Rourke (Father) and Respondent Kourtney Williams (Mother) have one minor child together, Ari (DOB 2/11/2015, age 11). The parties married on 4/22/2017 and separated on 2/3/2020, for a marriage of 2 years and 9 months. Father is represented by attorneys William and Karen Parks. Mother is represented by attorney James Ward.
- 2) A Judgment of Dissolution was entered on 12/30/2021, which provides in relevant part:
 - a. The parties shall share joint legal and joint physical custody of Ari.
 - b. The parties shall have an equal timeshare of Ari.
 - c. Father shall pay Mother \$293 per month in base guideline child support plus Smith / Ostler child support, adjusted to take into account the fact that both parties hold Uber

1 shares. The child support calculation attached to the parties' Judgment is based on
2 Husband's earning \$13,650 per month in wages and salary and Mother's earning \$8,398
3 per month in wages and salary.

4 d. The Court's jurisdiction to award spousal support to either party was terminated.

5 3) On 8/6/2025, Mother filed a Request for Order seeking to modify the child support order set forth
6 in the Judgment. Mother attached a proposed XSpouse calculation which shows \$3,981 per
7 month in guideline child support. Per the Income and Expense Declaration filed that same day,
8 Mother states Father now earns \$53,124 per month based on his "6/30/2025 paystub" and Mother
9 states she is currently earning on average \$300 per month in dividends and interest plus an
10 additional \$800 in average monthly net self-employment income as the owner of Obodo Tax
11 LLC. Mother states she was forced to leave her prior W-2 job due to health issues. Mother states
12 her previous position required that she sometimes work 80+ hour weeks with little sleep.

13 4) The hearing on Mother's 8/6/2025 Request for Order to modify child support was originally set
14 for hearing on 9/5/2025. The hearing was continued to 11/7/2025 because Father's attorney was
15 unavailable on 9/5/2025 and because Father wanted to conduct discovery. The 11/7/2025 hearing
16 was then continued to 5/7/2026 because Father stated Mother had ignored his discovery requests
17 and he had filed a motion to compel which was set for hearing on 1/29/2026. The 5/7/2026
18 hearing on Mother's request to modify child support was then continued to a status conference on
19 6/1/2026 because Father requested to schedule Mother's request to modify child support for a
20 long-cause hearing. At the 6/1/2026 status conference, the Court continued the status conference
21 to 8/24/2026.

22 5) On 1/29/2026, per the Findings and Order After Hearing filed 2/3/2026, the Court granted
23 Father's motion to compel and ordered Mother to provide full and complete code-compliant
24 responses (without objection) to Father's Special Interrogatories, Set One; Request for Production
25 of Documents, Set One; and Form Interrogatories, Set One no later than 2/13/2026. The Court
26 also granted Father's request for the Court to reserve jurisdiction to impose issue or evidence
27 sanctions under Code of Civil Procedure sections 2023.030(b)-(d). The Court further awarded
28 Father monetary sanctions in the amount of \$3,612.50 under Code of Civil Procedure sections
29

2030.290(c) and 2031.300(c), but reserved jurisdiction to set a deadline for payment of this amount because the Court found that Mother did not have the current ability to pay that amount.

6) On 5/21/2026, Father filed a Request for Order requesting sole legal and sole physical custody of Ari, a full-scope child custody evaluation, and reduced visitation for Mother. The hearing on Father's 5/21/2026 Request for Order is currently set for a short-cause hearing on 10/8/2026.

7) Now on for hearing is Father's Request for Order filed 3/3/2026 wherein Father requests approximately 60 detailed issue and evidence sanctions (many requests contain multiple subparts) based on purported deficiencies in Mother's responses to his discovery requests. Father also requests \$13,300 in monetary sanctions under Code of Civil Procedure sections 2023.020, 2023.050, 2030.030, 2030.290(c), and 2031.300(c). Father further requests that the Court order Mother to immediately pay the \$3,612.50 in sanctions ordered at the 1/29/2026 hearing.

8) On 3/3/2026, Father also filed a Separate Statement, a Memorandum of Points and Authorities, and an attorney declaration in support of Father's request for sanctions.

9) On 5/11/2026, Mother filed a Responsive Declaration asking the Court to deny Father's requested relief.

10) On 5/15/2026, attorney Karen Parks filed a declaration increasing Father's request for sanctions to \$21,140.

11) On 5/15/2026, Father filed a Reply Declaration as well as Objections to Respondent's Responsive Declaration and Separate Statement. Father states that he discovered Mother has eight financial accounts that were not disclosed in her previously filed Income and Expense Declaration, only one of which is a retirement account. Father notes that Mother previously stated she did not know retirement accounts were required to be disclosed. Father further states that the non-retirement accounts contain \$214,730.29 and argues that Mother therefore has the ability to pay both the requested \$21,140 in attorney fee sanctions and the previously awarded \$3,612.50 in sanctions.

12) On 7/15/2026, Mother filed a second Responsive Declaration reiterating her requests that the Court deny Father's requested relief.

13) On 7/17/2026, Father filed an Update Declaration and attorney Karen Parks filed a request for additional attorney's fees following newly discovered information. Ms. Parks states that she

1 recently discovered that Mother has or had a previously undisclosed daycare business. Ms. Parks
2 now requests \$24,780 in attorney fee sanctions.

3 14) On 7/17/2026, Father filed a Request for Long-Cause Hearing. Father writes, "The discovery at
4 issue consisted of 42 Requests for Production of Documents and 46 Special Interrogatories. Most,
5 though not all, of those 88 demands are at issue. The Court must therefore determine, on a
6 request-by-request basis, what was requested, what Respondent represented in her responses,
7 what she produced or withheld, whether responsive information was within her possession,
8 custody, or control, and whether the record supports the requested sanctions. The issues require a
9 request-by-request analysis of Respondent's responses, production, compliance, and the sanctions
10 sought...Live testimony and cross-examination are necessary for the Court to resolve the
11 resulting factual conflicts and assess Respondent's explanations and credibility." Father estimates
12 that a 1.5 day long-cause hearing is necessary for his request for discovery sanctions, 2.5 hours of
13 testimony from Father, and one full Court day of testimony from Mother.

14 15) On 7/21/2026, Mother filed a Supplemental Declaration stating her daycare business never earned
15 any income, "not gross revenue, not net not income, nothing. There was no income to disclose
16 because none was ever earned."

17 16) The volume of pleadings filed for Father's 3/3/2026 Request for Order is enormous. The
18 pleadings cited below total 636 pages.

- 19 a. Father's 3/3/2026 Request for Order is 178 pages long (including exhibits). The exhibits
20 to Father's Request for Order include a meet and confer letter dated 2/19/2026 and
21 addressed to Mother's attorney which is 60 pages long and a second meet and confer
22 letter dated 1/2/2026 and addressed to Mother's attorney which is 53 pages long.
 - 23 b. Father's 3/3/2026 Separate Statement is 99 pages long (no exhibits).
 - 24 c. Mother's 5/11/2026 Responsive Declaration is 71 pages long (including exhibits).
 - 25 d. Mother's 5/11/2026 Response to Separate Statement is 36 pages long (no exhibits).
 - 26 e. Father's 5/15/2026 Reply Declaration is 33 pages long (including exhibits).
 - 27 f. Father's 5/15/2026 Objections to Respondent's Responsive Declaration and Separate
28 Statement is 22 pages long (no exhibits).
- 29

g. Mother second Responsive Declaration filed 7/15/2026 is 98 pages long (including exhibits).

h. Mother's 7/21/2026 Supplemental Declaration is 99 pages long (including exhibits).

B. Findings and Order

1) Father's request for immediate payment of the \$3,612.50 in sanctions previously awarded at the prior 1/29/2026 hearing is hereby granted. Mother shall pay this amount to Father no later than 8/15/2026.

2) **Regarding the remainder of Father's requests for discovery sanctions, the parties are ordered to appear at 11AM on 7/28/2026.**